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The Press and Political Processes in Contemporary Iraqi Kurdistan

**Interim Report on Views Expressed on the Press and its
Environment (2009-2011)**

John Hogan and John Trumpbour



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When we announced our research project on “The Press and Political Processes in Contemporary Iraqi Kurdistan” in the summer of 2009, we expressed the commitment to maximising dialogue and drawing upon the broadest range of perspectives possible. It is in this spirit that we have produced the following document, to act as an interim report on the major themes and contending perspectives on the state of the press and its environment in contemporary Iraqi Kurdistan.

As reported elsewhere, it is thought that there are over 400 newspapers and magazines in publication in Iraqi Kurdistan (See, for example: http://en.rsfsf.org/IMG/pdf/rsf_rapport_kurdistan_irakien_nov_2010_gb.pdf).

Newspapers are produced by all of the main political parties, many NGOs and also by privately funded publishing houses. With the saturation of the market, doubts exist about the capacity of newspapers to survive from sales and advertising revenue alone. Newspaper journalism in Kurdistan has a long tradition, stretching as far back as 1898, when exiled Prince Miqdad Badrkhan established the first Kurdish newspaper, *Kurdistan*. However, recently there has been an explosion of interest in the industry and an influx of many new contributors. There is some way to go in the development of professionalism and proper training. Political factionalism is never far from view and the task of gaining a good overview of what is going on in Iraqi Kurdistan requires a concerned reader to access several newspapers and to constantly be aware of potential bias in reportage.

In developing a clearer understanding of what is going on, the research team has mounted several research trips to Iraqi Kurdistan. Thus far, over 200 hours of interviews have been recorded. In addition, telephone and internet based exchanges add further to the rich archive of data. At the outset, we have sought the collaboration of journalists and newspaper editors. Over 80 journalists and newspaper editors have generously given up their time in face to face interviews.

In addition, we have sought the insights of academics and scholars from within and outside of Iraqi Kurdistan, as well as from representatives and experts in the field of journalism and professional standards and training. In attempting to ensure an inclusive approach, the research team has conducted interviews and monitored the press in all three governorates of the region: Duhok, Erbil and Suleimania. In addition, we have observed and continue to monitor the interface between the press environment in Iraqi Kurdistan and the global media of the internet, foreign press coverage, opinion pieces and reports.

We realise that there are journalists and representatives of a number of press outlets who we have yet to have the pleasure of meeting. The next phase of the research project shall be concentrating upon gaining the views of politicians, law makers, lawyers and faith leaders. Nevertheless, we remain open to dialogue with anyone from the press, regardless of whether we have met previously or not. The aim is to make a number of field trips to Iraqi Kurdistan over the next few months and to present our final findings in early 2012.

The context within which this research project has been pursued has been extremely rich, dynamic and dramatic, to say the least. There is continued uncertainty about the future of a region which continues to develop rapidly but which faces immense problems and pressures both from within and externally, all in a context of unrealised national aspirations. Complaints of harassment and violence directed at journalists, the questioning of professional standards, electoral competition, the formation of new political blocs, litigation, legal and governmental reform and demonstrations have all featured largely in the presentation of the press environment. In addition, perhaps at a deeper level, challenges and retrenchment in the field of gender relations, consideration of the basic character and dynamics of politics, economy and society, deep seated concern about the legacy of internal conflict and genocide, the spaces for individual expression, the state of basic services, and the prospects for the future of all sections of society, in particular the younger generations, are all debates and discussions inescapable for those who are concerned to help the press realise its promise.

That promise is to overcome the dangers inherent in a degraded media environment. As we have pointed out elsewhere the task is, to use the language of the German social theorist Jurgen Habermas, to create a mature “public sphere”, a zone for “discourse” in which ideas are explored and a “public view” can be expressed. Or, to put it in the terms expressed by Roberto Michels, the challenge is to overcome the impoverishment of the masses in the field of communications and build access to information and knowledge, so that people may avert popular subordination to oligarchy, the rule of the few over the many.

In Iraqi Kurdistan, there is very little disagreement that the current state of affairs in the press is chaotic. Likewise, there is no doubt that the press has a vital role in generating a deliberative form of democratic citizenship. We have found widespread

agreement that newspaper journalism and the conditions under which it operates require reform. However, thus far there is an absence of consensus in the specification of the causes of the problems faced and in the definition of what is to be done. The media critics Robert W. McChesney and John Nichols have suggested that “a healthy journalism” should seek to achieve the following goals:

1. *It must provide a rigorous account of people who are in power and people who wish to be in power, in the government, corporate and nonprofit sectors.*
2. *It must regard the information needs of all citizens as legitimate.*
3. *It must have a plausible method to separate truth from lies, or at least to prevent liars from being unaccountable and leading nations into catastrophes – particularly wars, economic crises and communal discord.*
4. *It must produce a wide range of informed opinions on the most important issues of our times – not only the transitory concerns of the moment, but also challenges that loom on the horizon. These issues cannot be determined primarily by what people in power are talking about. Journalists must provide the nation’s early warning system, so problems can be anticipated, studied, debated and addressed before they grow to crisis proportions.*

(Robert W. McChesney and John Nichols, *The Death and Life of American Journalism: The Media Revolution That Will Begin the World Again* (New York: Nation Books, 2010), pp. 163-164.)

By many measures, media institutions in Iraqi Kurdistan could do better in attaining these ideals. Below, we present propositions derived from our readings, interviews and correspondence. **We do not necessarily agree with these views** but we present them here for debate and to shed light on the kind of issues that are being discussed in relation to the press in Kurdistan. The views expressed are markedly different, at times in contradiction with one another. The reason we present these ideas is to stimulate a dialogue about the strengths and weaknesses of the press environment and to explore the possibilities and perils for reform. It is the ideas expressed which matter. While we do not wish to align with any particular perspective, we consider the points to be worthy of consideration and possible comment, no matter how critical. With the aim of depersonalising the debate and out of respect for the sensitivities surrounding the debate over the future of the press environment, we have sought to protect the identity of contributors as much as possible. It is the ideas expressed that matter at this stage and it is the reception and consideration of these ideas which we are most interested in hearing.

Feedback

We would be very grateful for consideration of the points made. Feedback will be invaluable assistance in our own voyage of discovery. But, more importantly, we hope that the points raised will assist in the development of more fruitful debate,

deeper understanding and provide the basis of recommendations for reform to produce better outcomes. We have sought out and received much commentary about the news and political journalism delivered by media institutions in Iraqi Kurdistan, but we also recognize that many readers seek newspapers for the coverage of business, sport, entertainment, and cultural issues. While we will remain focused on the press's contribution to democracy and ongoing political debate, we welcome reflections on media performance in many other arenas of activity.

If readers can examine the propositions below and provide responses or even suggest additional or alternative lines of interpretation, the research team would be most grateful. Please send all comments by Monday, November 7 to Dr John Hogan at the following address: jhogan@law.harvard.edu

Propositions on the Press Environment (compiled from interviews and commentary from Iraqi Kurdistan)

Proposition 1

What worries many Kurds is the language that is being used is very provocative. It reminds those who witnessed it before of the language used in the press in the build up to and during the course of the fratricidal war. Violent and abusive language produces effects. It is essential that everyone remembers the mistakes of the past and avoids repeating those mistakes.

Proposition 2

The use of language has become increasingly emotional. Emotions are raw and passionate, but not compassionate. The language that is used is too often violent, with no sign of a wish to engage in dialogue, to make things better. To be opponents does not necessitate being enemies. Kurdistan needs dialogue. The war of words does not help to promote the rule of law or respect for the institutions of governance which are still in their infancy. The use of street language inflames tensions and often deflects attention from addressing pressing challenges for society.

Proposition 3

It is important that politicians and officials take time to answer questions. It is a good idea and reasonable to ask that journalists provide written questions prior to interview. It is also a good idea if interviews are recorded. There is a tendency to feel compelled to answer questions immediately and to provide the impression that officials should be able to answer any question that may

be posed. This is a mistake. There is no shame in admitting that an answer may not be available immediately. It is better to give and to get a considered answer rather than one forced out under pressure or because vanity insists that one is always in a position to deliver judgment. If journalists are really concerned about uncovering the truth they will understand that the best answer may take a little time.

Proposition 4

The government need to reinvent themselves. They need to be confronted with the truth rather than flattery. When the press raises legitimate concerns they can help the government and society to reach better outcomes. Awene, for example, had such an effect, when the paper published concerns regarding an electricity project.

"I would like to send you the details of an electricity project published in Awene, based on documents from the KRG.

The first story was published on Awene's front page (printed edition) on May 5th 2009. You can see that on this link: <http://www.awene.com/Rojname/171/1711.pdf>

One day later (i.e. on May 6th), the same story was published on the Awene web page with a scanned document. You can see it on this link: <http://www.awene.com/Direje.aspx?Cor=1&Babet=Hewal&Jimare=3614>

After that, the Attorney General in Sulaimaniyah started an investigation. Finally, the Court in Sulaimaniyah forced the people involved in the project to return 18 million 750 thousand dollars to the KRG. You can see this story in the printed edition on March 23rd 2010 (again based on Courts documents), please visit this link: <http://www.awene.com/Rojname/216/2161.pdf>"

Proposition 5

There are some people who think it is profitable to feed pictures and stories to give the impression that Kurdistan is a repressive, brutal place. International NGOs are courted and fed. Little attention is given to the fact that Kurdistan Region remains part of Iraq, is enclosed on all sides by hostile states, yet displays far greater levels of press freedom, significantly lower levels of violence and is relatively speaking a space of peaceful coexistence for different religious and ethnic communities. These are great achievements. Yet, Iraqi Kurdistan region seems to be targeted for special negative attention. Why?

Proposition 6

The Human Rights Watch report produced in May 2011 raised a number of important points (See <http://www.hrw.org/news/2011/05/24>). However, the claim that the KRG is no better than the Baathists was a disaster for all concerned to promote civil liberties and human rights. The highly respected scholar Professor David Romano explored the absurdity of such a claim in an article for Rudaw (see: <http://rudaw.net/kurdish/index.php/opinion/6615.html>)

or <http://www.rudaw.net/english/science/columnists/3737.html>). HRW has lost credibility. Kurdistan needs assistance. Expertise is to be welcomed. But, if expert opinion is exposed as biased and wildly wrong, then any forces which prefer to disregard human rights will have more space to operate and less reason to fear condemnation. With HRW (and this also applies to some other international NGOs), when they lose credibility the force of their work is lost. They now have considerable difficulty in advocating for human rights. International NGOs need to do their job properly and for everyone in Kurdistan to help them do their job properly.

Proposition 7

To characterise Iraqi Kurdistan as totalitarian is a school-boy error. A totalitarian state is one which has mastery over all of its territory, conducts extensive surveillance, permits only one reading of reality and banishes opposition, whether that be in the form of competing political parties or through freedom of expression. Kurdistan has problems, no doubt, but totalitarian it is not. In fact, to claim that totalitarianism is a suitable concept for understanding the reality of Kurdistan is an obvious performative contradiction: if someone truly believes that they live in a totalitarian society then they need to explain how it is possible for them to express dissent. What is more, as a starting point for analysis the concept of totalitarianism is frequently used to deny the possibility for reform and therefore dialogue. Kurdistan has problems that need to be addressed, but these problems need to be approached with properly thought out concepts which reflect reality rather than the fantasy or cheap propaganda of self-appointed intellectuals.

Proposition 8

To understand what is happening in Kurdistan, it is important to recognise that, for many, journalistic practice is a way to find self-expression. In Kurdistan the individual is subordinated to the collective. The older generation live with the collective memory of the Iraqi dictatorship and how that necessitated silence. Today, the space is open and journalism is a mode of self-expression. The quality might be poor but it is a source of joy that so many people have the opportunity and feel free to speak.

Proposition 9

Some “journalists” deliberately write provocative and controversial articles, or make up stories about being harassed or beaten. It is all too easy to fabricate acts of cyber-abuse or threats from “unknown” mobile phone numbers. To broadcast tales of abuse improves chances when wanting to gain visas, or migrate and claim asylum in Europe or America. Professionally, to be on the receiving end of repression can also be used to confect images of martyrdom, to draw attention and to inflate importance in the eyes of the crowd. Politically, to be able to identify abuse and threats with one political party has obvious advantages for their opponents. False claims about brutalisation divert attention away from real acts of violence and intimidation. When arbitrary detention, physical abuse and threats occur, it is right and proper for

these to be reported. The exercise of extra-judicial violence weakens Kurdistan and is destined to fail. Consent cannot be manufactured out of intimidation. But, to make false claims or to exaggerate makes the abuse of power harder to confront.

Proposition 10

Making sure that journalists can conduct their work free from harassment must be a priority for the authorities. Attacks upon journalists do nothing but degrade the media environment and presents a very bad image of Kurdistan. A number of international NGOs, newspapers and journalist organisations have claimed that the rights of journalists have been violated in Kurdistan and that the situation of journalists has deteriorated in Kurdistan since February 17th 2011, the date when demonstrations began in Suleimania and ended in violence. The finger of blame is pointed at the authorities, who amongst other things are accused of failing to pursue investigations and bring to justice those responsible for attacks upon journalists.

Proposition 11

The physical attack upon Asos Hardi (director of the Awene Press and Publishing Company, which publishes Awene in Iraqi Kurdistan and a member of Human Rights Watch's Middle East and North Africa advisory committee) on August 29, 2011 was a disgrace. As Sarah Leah Whitson, Middle East director at Human Rights Watch said. "Kurdish authorities should act decisively to bring whoever is behind this attack to justice." The President of Kurdistan intervened to condemn the attack as did PM Baham Salah. Asos Hardi is a very well respected player in the newspaper industry. Anyone who knows him knows that he will not give in to intimidation. He and his family are very well connected to all the main parties in Kurdistan, at the highest level. The attack upon him is a force for destabilisation. It increases tension. Thankfully, the authorities have acted swiftly and an alleged assailant has been arrested. Asos Hardi's newspaper acted responsibly too, when the story of the arrest broke on Tuesday, September 6, 2011. Awene indicated that it had information that a member of the PUK politbureau was involved in organising the attack. The paper refused to implicate the party as a whole, stating that the crime was an individual act, and also declined to name the individual concerned so as not to pervert the course of justice.

Proposition 12

Iraqi Kurdistan is under immense pressure at the moment and there are a number of forces who are actively seeking to destabilise the region. There are disputes with Turkey and Iran. The PKK and PJAK are being urged to take the road of peace. There is pressure from the south and there is always the

spectre of militant Islam. With such forces for instability at play, the authorities need to be on heightened alert. The targeting of prominent and outspoken journalists destabilises a nation that needs to remain unified in the face of adversity. Perhaps it is time for the authorities to consider providing personal 24 hour security for prominent newspaper editors and journalists, so that the irresponsible or possible agent provocateurs can be held at bay?

Proposition 13

No one should and can deny the force of the cleric, party leader, journalist or even street protester. But the question that arises is, how far if at all can power be legitimately exercised in the face of parliamentary and governmental authority, which after all derives legitimacy from popular mandates endorsed by a multitude of international electoral monitoring groups? It is obvious that an official who misuses political connections to secure material advantage is acting outside the law and is thereby undermining the authority of the law and the institutions which validate those codes. But it is also the case that clerics who act outside of the law with proclamations and judgements which run against statute are infringing upon the proper working of the democratic process. Likewise, those who use and promote violence in pursuit of street protests have difficulty in maintaining democratic credentials and pretensions. It is the responsibility of all to consider rationally the limits and possibilities for the exercise of extra parliamentary power. The institutions of Kurdistan are new. There is a great deal of inexperience when it comes to building a democratic society. Careful consideration is required.

Proposition 14

The protests which started in February 2011 began peacefully and expressed legitimate demands for reform. But, when a minority of demonstrators were led on a provocative and violent attack upon KDP offices in Suleimania a series of further violent confrontations were sparked and raised tension considerably across the region and in Suleimania in particular. The attack on the KDP offices raised the nightmare of the fratricidal war. As Ata Qaradaghi pointed out, it is no secret that the KDP is marginalised in the city. The administration of the city lies in PUK hands. If the violence was rage against symbols of authority or the mismanagement of the city, then it was misplaced. The KDP cannot be regarded as primarily responsible for how Suleimania is governed. Yet it was the KDP which came under attack. How could this possibly be justified? It is evident that despite the strategic alliance between the KDP and PUK, there remain unresolved grievances and bitterness which live on after the horror of the fratricidal war. With such a history and potential for an explosion of anger, it is clear that security forces require training in crowd control and that protests are managed properly, with stewards and organisers taking their share of responsibility for orderly conduct.

Proposition 15

There are genuine concerns regarding corruption and nepotism, ones shared by many across the country. It is good that the President announced that it was not enough to talk about tackling corruption. Instead, action needed to be taken and seen to be taken. The KRG has taken steps, but these have not been highlighted or sufficiently well broadcast. Now is the time for action. But there are many other important issues which cannot be ignored. The situation in Kirkuk, where Arab chauvinists have been active, has dictated the need for the deployment of more Peshmerga forces. This is all the more pressing, as Iraq and political factions and sections of society prepare for the withdrawal of US forces. It should also be noted that protests, while legitimate in so far as violence is avoided, have been seized upon by forces both within Kurdistan and outside, for their own narrow anti-patriotic ends.

Proposition 16

The protest movement was presented in Kurdistan and amongst their supporters further afield as the expression of human dignity and freedom. But let us consider the following. When Sherko Bekas called for religious tolerance during a talk to protesters in Suleimania he was greeted with criticism. When it came to the commemoration of Anfal, people started to shout at speakers who questioned the supposed solidarity of Saudi Arabia towards the Kurds and pointed out that the bearers of conservative Islam were silent when the Kurds faced genocide during the Anfal. Tolerance and dialogue were also absent in the treatment of Farhad Pirbal. He went to Suleimania to engage in dialogue with the protesters but was excluded. Some Kurdish Mullahs even called the protests a jihad. These incidents would seem to indicate that a significant section of the movement has a weak attachment to human rights or tolerance. It is perhaps no surprise that the use of Islamic rhetoric alienated some of the protesters and resulted in dwindling support. If the press is to promote human rights then it is necessary for journalists to debate honestly what they understand by the term and not hide behind the rhetoric of liberalism in order to promote narrow political agendas.

Proposition 17

Following the death of Jawhar Namiq Salem, who had just died in hospital in Sweden where he had been receiving treatment for cancer, Hawlati newspaper carried a story on March 23, 2011 claiming that the former speaker of Parliament had been poisoned. Even though no verifiable evidence was produced to support the story, and as family members disputed the story and the fact that an assassination through the use of poison would have been easily uncovered by the Swedish medical authorities, the paper

continued to promote their claims. This story was released during a very tense time in Kurdistan. It might easily be interpreted as a high profile attempt to stir up suspicion and conflict. If the story was true, then of course it deserved to be published. But with no evidence and the absence of credible circumstances, in particular the fact that the Jawhar Namiq Salem died under the medical care of Swedish health professionals, then one is confronted by very curious editorial judgement. There are other examples of provocative and irresponsible journalism. There have been attempts to suggest that Arab troops were deployed in Suleimania and that protesters had been subjected to the same gas as used in Halabja. When false claims are made, the whole of society is undermined, left without reliable sources of information with which to make rational judgements.

Proposition 18

If the Kurdish leadership has failed, then it needs to be specified from which point in time the problems of leadership first emerged. If an account of where Kurdistan stands now is to be produced which has any credibility, then certain figures in the opposition movement need to take responsibility. The fratricidal war was a disaster and the process of healing is not complete. Admittedly, writers, such as Bakhtiar Ali, have discussed the issue through fiction, but there is absence of a detailed scholarly account. Responsibility has to be taken and measures need to be put in place to address the needs of survivors and for victims to find closure. The war happened. President Barzani and President of Iraq Jalal Talabani have both expressed their deep regret. The KDP and PUK have found a way to work together. Calm reflection upon history is an urgent task, if past errors are to be avoided. All leaders need to be accountable, and this includes Nawshirwan Mustafa who has played such a crucial role in shaping the terrain of political action and discourse in Kurdistan. It is quite correct for the press to explore the past and analyse its impact upon the present, but it is of vital importance that great sensitivity is displayed in the tone and language deployed.

Proposition 19

It is important to understand that the discourse of the older generation is formed in the experiences of the military struggle, away in the mountains and where the enemy was clearly defined in the institutions and politics of the Baathist regime. Today, there is a generation of young people for whom these memories are not a lived experience. The KRG could do well to remind the nation of the history of the national liberation struggle and to connect that history with the present, to present the aim of freedom within a clear appreciation of the current constraints upon the freedom of the nation, both in the south and in the other territories of Kurdistan. As Chris Bowers, British Consul General in Erbil, has pointed out,

"The pre-1991 generation laid the foundation stones for Kurdish autonomy by fighting or reaching accords with the various rulers in Baghdad, but never losing sight of the cause and commitment to Kurdish nationalism despite years of persecution and hardship. ...freedom and the sudden prosperity has come at a huge cost. Freedom is never free, as the saying goes. It is the task of the pre-2003 generations to explain to younger generations how precious that freedom is, to know how it came about, to encourage them to exercise it and to treat it with respect." (See: <http://rudaw.net/kurdish/index.php/opinion/7498.html> or <http://www.rudaw.net/english/science/columnists/3861.html>).

This requires a dialogue and an appreciation of the specific requirements of youth, their needs for spaces of social interaction, access to opportunities for meaningful production, education and training, along with the prospects of a better life, such that they can embrace willingly the responsibilities that come with new found freedoms and opportunities. There needs to be a conversation between young and old. How this is done is important. It is important to listen. But it is also important to present suggestions of how things could be done differently, to be constructive, not to list failures and arrogantly assert an alternative agenda.

Proposition 20

The discussion and advocacy of human rights and freedom is positive. But there is far too little attention given to the dignity and rights of women. The concerns of women are marginalized in the mainstream press and it is left mainly to the specialized womens' press to take up the cause. The government would do well to direct more resources into helping women journalists and their papers. But it is also the case that the mainstream press needs to address their own practice. Here, we note the contrast between the coordinated agitations organised by some papers, following the murder of the young man, Sardasht Osman, in May 2010, with the complete absence of activity around the forced suicide and murder of women. Saya Fatih died in June, 2010. She is alleged to have committed suicide but her ex-husband was arrested for allegedly causing her death. Newspapers which had mobilized so forcefully following the Osman murder were suddenly silent. When Begard Hussein, a journalist of long standing was murdered, there was no call for a mobilization or evidence of "freedom lovers" climbing local and international stages to call for justice. With the power to shape and lead debate comes responsibility. Advocating human rights and calling for transparency requires crucial questions to be answered. Is it the case that the daily abuse of women, including horrifying acts of murder, are not worthy of attention? Are women less valuable as human beings than a male journalist or male political leader?

Proposition 21

In Kurdistan there is a lot of talk about "red lines", the idea that there are certain discussions which are unacceptable. There are a number of examples that could be cited. When it comes to the rights of women, there are certain

challenges which are regarded as unacceptable in some quarters. In late 2010, when Mullah Ferman heaped opprobrium on women who dared to challenge male domination and violence, his incitement to violence indicated the high price that might be paid if writers cross the red lines defining the correct behavior for women. Even President Barzani has been pilloried publicly by clergy who oppose his support for the recent legislation presented to combat violence against women. There are in fact clerics who condemn honour killings, reject FGM (female genital mutilation), and call for women to be treated with greater dignity; but their voices are given little coverage compared to those shouting in determined defence of violent reprisals and repressive practices. The creation of taboos, the idea that certain discussions or proposals are beyond discussion, undermines the ability of Kurds to explore in full their own past and present. As such, the opportunity to engage in mature and reasoned debate is curtailed.

Proposition 22

When we think about “red lines”, we need to recognize that “new red lines” have been created. In some circles, it is regarded as unacceptable to have any dealings with the KRG. From this perspective, to work for or with the KRG is to invite dishonor and damage to personal and family reputation. To have any relationship with the KRG is therefore unacceptable. This is even the case when the KRG sponsors research. Academic research commissioned or supported by the KRG can be ignored or its integrity questioned, without there being any consideration of the content of the work produced. This ignores the fact that the KRG has sponsored scholars who have produced work which is of great benefit to Kurdistan, work that has raised difficult, uncomfortable and critical questions. Dr Choman Hardi in her book on the Anfal and the experience of survivors raises a whole series of important issues. Dr Hardi makes no secret of the fact that the KRG sponsored her and she declares thanks openly for all to see in her book published in 2011. Likewise, we have the research project on honour based violence driven by Dr Nazand Begikhani and published in 2010. The report and its recommended action plan have been applauded internationally, in particular singled out for high praise by the UK Foreign Office. It forms the basis for further progress in promoting gender equality research and policy, which has been highlighted in the *Times Higher Education Supplement*. The research posed difficult and challenging questions to the authorities and called upon them to overhaul their approach to honour based violence. Yet, it was the KRG which sponsored this major piece of research. Dr Hardi and Dr Begikhani did not submit to the regime of the “new red lines”. If they had, Kurdistan would be more impoverished. With reasoned, rigorous and scholarly research, the level of understanding and debate can be raised. But, with the production of “new red lines”, dialogue and reasoned debate are undermined.

Proposition 23

No account of the press environment in Kurdistan can be complete without a consideration of the importance invested in reputation and honour or the concept of 'shame' or *ayb*. The ability of individuals and by extension their wider families to command respect is founded upon their perceived virtue in the eyes of the collective. To be dishonored is to be socially destroyed and anyone who threatens to invite shame can quite easily face harsh penalties, including death. While women are the most visible victims, it is a problem that permeates all parts of society and structures the interactions between the press, society and political institutions. The enforcement of honour codes places such a high tariff on deviation that it acts to generate practices of deception. Society is so unforgiving that to admit to being different, to weakness or to having made mistakes can be suicidal. So, individuals feel compelled to conceal thoughts, desires and practices, to avoid ruination if they deviate from accepted standards. Behind pride, a climate of fear prevails, where potential threats to reputation preclude transparent, honest social interaction and erodes possibilities for trust.

Proposition 24

Rumour and gossip are part of the dynamic of communication in Kurdistan. There is a very strong appetite for gossip and a widespread willingness to circulate rumours. This is a problem which affects all. As Kemal Rauf pointed out in Hawlati, on May 11, 2011, this culture of hearsay indicates a failure to create a healthier society based on a culture of reasoned debate. At the end of this very revealing editorial, he states

"Currently, all of us, including the opposition, independent media, authorities, people of all trends- secular and Islamic, left and progressive- even though we all call for change, freedom and the acceptance of each other, it doesn't seem that we understand the meaning of our slogans and demands. Hence, we have transformed society into a big factory producing accusation and gossip."

Proposition 25

By circulating accusations against an individual it is possible to destroy their reputation and honour in their community. The press, along with other forms of media, is used to target individuals. Some journalists and newspaper editors are provided with damaging stories about individuals by their enemies. One effect of this practice is to "provoke" violent retribution against journalists. It is important to recognise that violence directed at some journalists can be primarily caused by rage at having honour called into question. Likewise, to question the integrity of newspaper editors or journalists can provoke rage and retaliation in newsprint, adding further to the war of words. Therefore, when looking at the freedom of expression in Kurdistan it is necessary to recognise that what people write and say about each other can have a big

impact upon reputations and that honour is something which is fiercely protected.

Proposition 26

The authorities fail to give the right information. The government is slow in providing information and the parties are secretive. The government does not invite privately owned newspaper journalists to press conferences and so they in turn feel excluded. All of this adds fuel to the suspicion that the government is hiding the facts from the press and the people.

Proposition 27

In Iraqi Kurdistan a culture of secrecy has been inherited. In part, this is due to the burdens of living with very strict honour codes and the obsession with protecting reputation. But, it must also be remembered that carried also is the legacy of having lived under the dictatorship of Saddam Hussein. Under the rule of the Baathists, it was a matter of life and death for all members of families to be ready to conceal the truth about the whereabouts or activities of themselves or other family members. To be completely open would be a recipe for disaster. Those who lived under Baathism were brought up from an early age to hide the truth. There was no other option. This legacy of the culture of secrecy continues. It is reinforced further by the constant and ever changing pressures created for the Kurdish leadership from multiple external forces, most notably the unstable regime in Baghdad and the aggression of Turkey and Iran. It makes many wary of embracing the call for transparency and unable to decide what should be open for public disclosure and what should remain confidential.

Proposition 28

One of the big problems facing the press and government is that there is an absence of proper record keeping and reliable data. Statistics are made available, but very often they are inaccurate and at times contradictory figures are produced. Kurdistan lacks a professional bureaucracy, trained properly to follow clear rules and procedures for the recording of decisions, the monitoring of policy implementation and the presentation of failures and success in meeting targets. Effective bureaucracy comes with a mature state apparatus and a society which has the educational facilities capable of producing competent experts. Iraqi Kurdistan does not yet meet these preconditions for effective accountability. Attention to the development of personnel and systems is essential. The KRG requires clear data for its own efficient operation and needs to help the press with reliable data to provide

the public with a clear and true picture of the strengths and weaknesses of their government over time.

Proposition 29

If there is to be high quality and meaningful discussion, the government must address educational needs. The KRG has been weak and has given in to protests when it attempted to reform the examination system. But reform is essential. There are children who do not have schooling and many who spend too little time in the classroom. Schools are poorly equipped. Many good teachers have left. Teachers are under pressure, with children of the powerful provided with preferential treatment. The system is divided, with good facilities for those who can afford it and very poor provision for those who cannot. There are not enough schools and they are poorly regulated and inspected. If students are poorly educated, how can it be expected to build an economy and society which is sustainable? When people are poorly educated they can neither serve the community to the full nor are they able to critically examine the world around them and to make informed and independent judgments. Training is needed not just for journalists, officials and politicians, but also for the public, to be able to read with a questioning mind. If the government abdicates responsibility for education, the space is left open for Islamic extremists to fill the vacuum and it is already seen that there has been a rapid increase in the publication of texts which are poisoning the minds of the youth.

Proposition 30

If the people of Kurdistan are to become effective as citizens and to participate fully in the governance of their society, attention to the structure of the economy is required. The demand for industrial and agricultural reform is difficult to detect. People ask for jobs and wages. The government is the main source of employment. Many of the jobs provided are ones which are "fictional", posts which carry a salary but which demand little or nothing from the employee. The government is not going to be able to provide an ever increasing number of job opportunities which are unproductive indefinitely: Kurdistan has a very young and fast growing population. There is a need to invest in training and education to prepare the younger generation for work and for investment in pension systems for public and private sector employees to safeguard them in their retirement years. Investment is also required in a range of different economic activities so that Kurdistan can have a diverse economy. Far too much is imported. Many of the things that are imported are of questionable quality. A strategic approach to economic development would emphasise the need to build a skills base and a work ethic which allows the people of Kurdistan to be less dependent on the outside world. A great deal of damage was done to Kurdish economy by the

Baathist campaign of annihilation and then made worse by the double-embargo and the chronic dependency of living on the charity of international aid organizations. There is very little manufacturing and the agricultural sector is severely weakened. There are many complaints about lack of access to money but there is insufficient attention to the question of how it is that things are to be paid for. The demand for money, without the expectation of having to produce, is real corruption. Self-centered avarice destroys societies. Freedom necessitates taking responsibility. A people who are productive contribute to the building of society. They have a stake in the future. When people are earnestly involved in building a better life, a task that can only be executed collectively and understood as so, the choices they make for themselves and others are likely to be more considered.

Proposition 31

Many people who go into journalism do so without proper training, a vital part of which is learning about ethics. There are people who have made a difference by providing professional training. Hiwa Osman, for instance, has contributed greatly with his work through the Institute for War and Peace Reporting. However, more needs to be done. Judit Neurink, who runs the Independent Media Centre in Kurdistan, published a very good piece which was published in both Rudaw and Awene that serves as a good reminder of the importance of proper training and ethical behaviour. The piece deserves to be read in its entirety (see: <http://www.rudaw.net/english/science/op-ed-contributors/3755.html>). Leaving aside some of the specific remarks on Livin, Human Rights Watch and Reporters Without Borders, here are some of the main points she made:

“Many Kurdish colleagues still write stories based on one source who is often anonymous. A source that tells them something they like, which they write down without checking the information. This is not journalism, as it breaks the most important rules in journalistic ethics codes.

Let me remind you of the first three points in the International Federation of Journalists’ Code of Conduct:

- Respect for truth and for the right of the public to truth is the first duty of the journalist.*
- In pursuance of this duty, the journalist shall at all times defend the principles of freedom in the honest collection and publication of news, and of the right to fair comment and criticism.*
- The journalist shall report only in accordance with facts of which he/she knows the origin. The journalist shall not suppress essential information or falsify documents.*

Also look at this one:

The journalist shall regard as grave professional offenses the following: plagiarism; malicious misinterpretation; calumny; libel; slander; unfounded accusations;

acceptance of a bribe in any form in consideration of either publication or suppression.

Regarding all this, journalists can almost never report on the information that they got from only one source. 'Facts', the code says. The chance that a source is using a journalist is too serious. The chance that what the journalist is reporting is slander becomes enormous."

Neurink goes on to say, it is wrong

"to write stories based on a single unnamed source; that press freedom is absolute; and that journalists are under and above the law. If journalists believe this, it would be very bad for the future of journalism in Kurdistan, and for the Kurdish society.

Because the press should be a mirror of what occurs in a society, we should reflect what is happening to the people and politicians, so that both can function well in the democracy. We, journalists, are not part of the political system: we watch, report and criticize; we hold individuals and institutions accountable by publishing facts, by checking information and by avoiding libel."

Proposition 32

When newspapers libel individuals or organisations the best solution is to take them before the courts and allow the judges to decide as to guilt or innocence and to impose the appropriate sanctions allowed for by the law.

Proposition 33

When discussing respect for the law, it must be acknowledged that there are concerns that judges in Kurdistan are not independent and are under the influence of the governing parties. If the law is to be the place where journalistic malpractice is to be examined and for judgements to be respected, then it is necessary to construct a truly independent judiciary. President Barzani has announced measures to increase the professionalism of the judiciary as part of his reform programme and it will be a matter of great interest to see the future impact upon the administration of justice.

Proposition 34

Going through the courts is not always the best way to deal with defamation. Of course, legal action cannot always be avoided. But, some form of mediation is better, in the first instance at least. By taking a journalist or newspaper to court there is always the risk of creating martyrs or heroes out of journalists. There are some journalists and newspaper editors who crave public attention. They want to portray themselves as heroes, victimised for the exercise of free speech. There are few better ways of doing that than by

getting into court battles and the easiest route to getting into court is by provoking litigation by making libellous accusations. In Kurdistan there have been far too many examples of politicians falling into this trap. Legal battles tend to increase tension within public debate and provide a bad impression, no matter how justified each case might be. The best solution is to have a Press Commission. It should be made up in part by experts and should not be dominated by newspapers or by politicians. It should be a safe space in which citizens and journalists can present complaints and concerns. It should be able to engage in careful evidence based analysis, reach judgements, defend journalists when appropriate and make recommendations for remedial action where necessary. If constructed properly it should be able to take the heat out of controversies and assist the press and journalism in Kurdistan to serve the interests of the nation. A Press Commission wouldn't completely end the need for the courts but at least it would provide a space for mediation and dialogue.

Proposition 35

There is no denying that the press environment in Iraqi Kurdistan is currently very unhealthy. The violence has to stop. Physical violence, violent language and the violence that flows from the failure to follow ethical and professional guidelines must stop. Violence and intimidation are counter-productive. In the age of the internet and mobile telephony, it is practically impossible to prevent completely the expression and rapid dissemination of opposing views. Violence increases political tension and adds to perceptions of injustice. Injustice itself is corrosive of Kurdish unity. Kurdistan needs unity now more than ever. Military interventions, Turkey's long-standing and audacious claims on Mosul and Kirkuk, the very uncertain future for the Kurds of Syria, along with a whole host of problems in relation to Bagdad and the questions posed by US withdrawal from Iraq, place Kurdistan Region under immense pressure. In Iraqi Kurdistan rapid economic growth, population growth and movement, the increased exposure to outside cultural experiences, along with changes in faith practices, are some of the internal dynamics which pose significant challenges to traditional norms and practices, in particular in the field of gender relations. There is a need for a debate within society as to how best to manage these stormy waters and to build upon the historic opportunity presented to all Kurds by the establishment of the regional government. This requires well thought out, honest and calm reflection. Everyone needs to take responsibility.